

CAN WE EAT MEAT LEFTOVERS FROM SHABBAT AND ROSH HODESH DURING THE NINE DAYS

The HID" A (1724-1806) wrote (Birke' Yosef 551:6): "Some are lenient to eat meat that is left over from the Shabbat meals, and there is one who brought support to permit this from that which is brought in Masekhet Hulin (17a) regarding limbs of meat that were slaughtered with Nehirah (stabbing- it was permitted in the desert even though it was not slaughtered with Shehitah) that the Jewish People brought to the Land of Israel (where they were required to slaughter meat with Shehitah)- what do we say? Ho-eel V'Ishtere' Ishtere'? (because it was permitted it remains permitted?) The Gemara concluded Teku (no answer is given)... Because the Gemara concluded with Teku, and the authorities are lenient with Rabbinic prohibitions (in a case that the Gemara concludes Teku), and also here (meat during the nine days) which is also only a custom, we also say because it was permitted (for Shabbat) it remains permitted (after Shabbat)." And then he wrote "And even though it's possible to negate this support based on differentiations made by the later authorities, in any case one should not object to those that are lenient."

There are other lenient authorities such as R Eliyahu Yisrael (1715-1784, Ab Bet Din of Alexandria 1773-1784) in Qol Eliyahu (OH 45) based on the opinion that it's permitted because it's Shiyere' Missvah (leftovers from a Missvah). The Qol Eliyahu also quoted R Abraham Yisshaqi (1661-1729, Rishon L'Sion 1715-1722) who said the custom is to be lenient and that he himself ate leftovers during the nine days.* And R Hizqiyah Medini (1832-1904 Jerusalem and Hebron) in his S'de' Hemed (Ben HaMessarim 1:6, Pe-at HaSadeh Ben HaMessarim 1:3) also concluded that those who are lenient have upon what to rely. R Eliyahu Hamway (Aleppo 1840-1916) who was appointed the Ab Bet Din of Halab in 1894 also wrote that leftover meat is permitted during the nine days whether it's from Rosh Hodesh or Shabbat. (Peh Eliyahu Heleq Bet OH 551:9). Also see N'har P'qod (1908) by R Refael Aharon Ben Shim'on regarding the custom of Jerusalem that we don't stop one who is lenient.

What about in our times, now that everyone has a freezer? According to the B'ne Yissakhar (Tamuz/Ab 1) leftovers from Shabbat are permitted so that they won't be thrown away. Similarly the Orhot Yosher (see Pequmat El'azar 551:41/4) permitted leftovers on Saturday night (for Se'udah Rebi'it) because of Bal Tash-hit (the prohibition of throwing away food). According to these authorities (B'ne Yissakhar and Orhot Yosher) now that we have freezers we could say that they would no longer permit leftovers. But according to what was written by the HID" A, the Qol Eliyahu, the S'de Hemed and R Eliyahu Hamway, freezers do not make leftovers prohibited during the nine days. Ho-eel V'Ishtere' Ishtere' (or Shiyere' Missvah) still applies whether or not we have freezers.

But there are many authorities that object to the application of Ho-eel V'Ishtere' Ishtere' to leftover meat during the nine days. These authorities include the Bet She'arim (OH 267), the L'bushe Mord'khai (OH 49) the Qeren L'David (OH 146) and H Ben Sion Abba Shaul (Or L'Siyon Heleq Gimal 26:7).** However the Orhot Hayyim wrote (see Hazon 'Obadyah Arba' Ta'aniyot pg 184) that the HID" A

*Rabbi Refael Meyuhass (Jerusalem 1695-1771, Rishon L'Sion 1756-1771) suggested that perhaps he only ate them when he was sick or he ate leftover food that was cooked with meat but not the meat itself.

**The Kaf HaHayyim (Sofer) OH 551:143 quoted the Shemen HaMaor who objected to leftovers because we are supposed to suffer by depriving ourselves from meat during this time but if we eat leftovers we avoid the intended suffering.

knew that the support from the meat slaughtered with Nehirah could be negated, as he mentioned in his writings, but his reason was, that since meat during the nine days is not prohibited by the law, but is only a stringency (except for the Se'udat Mafseket) therefore one should not object to those that are lenient. Similarly H 'Obadyah Yosef wrote (Hazon 'Obadyah Arba' Ta'aniyot pg 185) that since refraining from meat is only a custom, and many communities were lenient (altogether), those communities that are lenient with leftovers didn't accept the custom on meat that was cooked for permissible use (Shabbat and Rosh Hodesh). And that the support from Ho-Eel V'Ishtere' Ishtere' is just an Asmakhta (an association, not the actual reason).

Furthermore, whether or not leftover meat is permitted during the nine days is a matter of dispute among the later authorities. The rule is Halakha K'Dibre' HaMeqel Ba-Abel-Mo'ed Qatan 22a (the law goes according to the lenient opinion regarding laws of mourning). That is said with regards to mourning the loss of a close relative which is considered "new mourning" (for a tragedy that just occurred) all the more so for "old mourning" (the destruction of the Miqdash which occurred many centuries ago) as the Gemara in Yebamot (43b) taught "old mourning is different since it is more lenient" (see Hazon 'Obadyah Arba' Ta'aniyot pgs 216-217)

It is also noteworthy that R Hayyim Palaji wrote (Mo'ed L'Kol Hai 10:20) "that even one who is stringent with regards to eating Shabbat leftovers on a weeknight, in any case for Se'udah Rebi'it (on Saturday night) it is permissible and it is also considered a Missvah (to eat them) because there is still the light (spiritual glow) of Shabbat." However R Palaji points out that one may not purposely cook extra food for Shabbat in order to have leftovers for after Shabbat. And even those that have the custom to eat leftovers did not permit one to cook extra food for Shabbat. Meaning that the custom is to have a reasonable amount of leftovers after Shabbat. (Torat HaMo'dim- Arba' Ta'aniyot pgs. 185-187).

Growing up in our community it was taught that our custom is to eat leftovers from Shabbat during the nine days. And many in our community still rely on that custom based on what they were taught by their elders. Based on the above sources, most importantly the HID" A and the former Ab Bet Din of Aleppo, R Eliyahu Hamway, this is a valid custom. And since the custom is based upon sources that are permitting leftovers for reasons other than the possibility of food being wasted, the availability of freezers in modern times is not a legitimate reason to annul our custom. Interestingly, H Obadyah Yosef does not mention freezers in his lengthy discussion on meat leftovers in Hazon 'Obadyah (Arba' Ta'aniyot pgs 177-188) which was published in 2007. Therefore with regards to our custom of eating leftovers during the nine days we can still apply the rule of Minhag Abotenu Torah Hee (Tosafot-Menahot 20b)